



E-Verify# 1198897

Date:

Dear Employee name,

This is an offer of employment as a Software Developer at EMVIA Inc.

In the role of Software Developer, you will be expected to carry out the duties and responsibilities discussed at the time of hiring and is periodically updated to reflect needs of EMVIA Inc.'s clients and customers. This position is "exempt" under the "Computer Employee Exemption," as defined and contemplated by the Fair Labor Standards Act ("FLSA") Sections 29 C.F.R § 541.400. 13(a)(1) and 13(a)(17). Your employment with EMVIA, LLC (the "Company") will be subject to a probationary period of 90 days from the date of hire (the "Probationary Period"). Your base wage will be USD 83,000.00 per annum (the "Base Wage"). Because you are being hired as a W-2 employee, your Base Wage will be subject to deductions for taxes and other withholdings as required by law and/or the policies of the Company. Your eligibility for other benefits, and bonus potential, will be administered in accordance with then-applicable Company policy after your 90-day Probationary Period.

Your expected starting date of employment is tentatively set for and is the latest of, October 10th 2022 or approval/confirmation with an effective date mentioned on your work visa (H1-B). Additionally, this offer is contingent upon, our receipt of your college transcripts, your ability to secure and maintain a valid employment authorization document or work permit issued by U.S. Department of Homeland Security and on your continued ability to satisfy the immigration requirements, where applicable, your acceptance of enclosed, standard Terms of Employment (Exhibit A). Your employment with the Company is AT-WILL and either party can terminate the employment relationship at any time with or without cause and with or without notice. You acknowledge that this employment offer letter, (along with the final form of any enclosed documents), represents the entire agreement between you and the Company, and that no verbal or written agreements, promises or representations that are not specifically stated in this employment offer letter, are or will be binding upon the Company. All employees are required to use ACH direct deposit for salary payments. Occasionally, the Company, with prior notice to you, may at its discretion deposit manual paychecks when direct deposit method is not feasible and during such instances your ability to withdraw funds for your expense maybe delayed up to three business days.

We hope that you will choose to join us and we look forward to working with you. Should you accept this "Offer of Employment", your continuous employment will require both satisfactory job performance and agreement with existing and future EMVIA Inc, policies. Please indicate your acceptance of this offer by signing this letter below and returning it no later than five working days from the date of receipt.

Sincerely,

Shravani Reddy
Human Resource Manager

I have read the terms of employment and hereby accept this "Offer of Employment" with EMVIA Inc.

Signature

Print Full Name

Date

EXHIBIT A: Terms of Employment

Welcome to EMVIA, LLC.

We sincerely believe that you can help us in our business and at the same time, find a challenging environment in which to grow and prosper. You will be joining us in a practice that we hope will provide opportunities for you that are both significant and rewarding. You will be working with a diverse group of professionals who are competent, motivated, and fun to be within a challenging entrepreneurial environment within the context of a global organization that wants to succeed.

By executing this Agreement, you hereby accept EMVIA, LLC's offer of employment and acknowledge that you have read and agree to the following terms and conditions.

Section 1. Scope and Duties

1.1 Offer of Employment. EMVIA, LLC, (hereinafter "Company") will employ you on a fulltime basis as an Application Engineer. You will render all reasonable services expected of an Application Engineer including but not limited to computer programming, software development, systems analysis, professional engineering, consulting and technical writing.

1.2 Transferability. You are liable to be temporarily or permanently transferred to any other division, geographical location, branch, group company, sister concern or subsidiary of the Company or any of its associates or customers, presently in existence and operation or that may become operational in the future. Any such transfer shall not entitle you to any additional compensation. In such event, you will be governed by the terms and conditions including remuneration as applicable to such new location in accordance with the Company policy. Such policy will be provided to you on or before your start date at EMVIA.

1.3 Rules and Regulations. During your employment with EMVIA, you will be governed by the services rules/manual and regulations framed by the Management from time to time, as applicable to you, including any other legal requirements that may apply. Such service rules/manual will be provided to you on or before your start date at EMVIA. EMVIA shall expect your best efforts, attention and commitment when performing your services as Application Engineer. You are explicitly advised to refrain from any such activity, whether for monetary or any other consideration, as may become, in our opinion, a hindrance to your performance. You are, by virtue of your employment with EMVIA, required to do all work ancillary or incidental to your position as an Application Engineer. Similarly, you may be required to do any job within your competence depending upon the exigencies of the situation.

1.4 Full-Time Employment. Your employment through the Company shall be full time. You hereby agree not to engage, directly or indirectly, in any other paid occupation or business outside of the Company without obtaining the Company's prior written consent.

1.5 Legal and Fitness Requirements. Your employment is subject to your obtaining employment eligibility and maintaining legal status in the nation state where your work is being performed. Failure to provide evidence of the same when required by the Company shall lead to immediate termination. Furthermore, your employment is subject to your being and remaining medically fit. This provision specifically applies to the Company's zero-tolerance drug abuse policy. The Company may require you to undergo random drug testing. If at any stage during your employment, the Company's Medical Officer determines you are not fit to perform your required duties, you may be terminated on medical grounds.

1.6 Duties to EMVIA. Your employment is conditioned upon your exercise of diligence and duty to the Company. You owe a duty of loyalty and faithfulness in the execution of your duties and to the Company as your employer. You owe a duty to uphold the reputation of the Company and to refrain from disparagement of the Company.

Section 2. Compensation and Benefits

2.1 Base Wage. Your Base Wage shall be payable monthly and calculated by multiplying the number of hours reported by you and approved by the Company and the end client where applicable. Any hours worked over 160 hours per month must be approved in writing by the Company. Any hours worked beyond 160 hour per month will be paid in the same amount as your Base Wage. You will be paid the same Base Wage every month based on your hourly Base Wage multiplied by a presumed maximum 160-hour work month. Any discrepancies in the amounts you were paid as a Base Wage and your actual approved and billed hours will be reconciled in a Quarterly Reconciliation.

In accordance with federal and state laws, because you are a W-2 employee, the Company shall deduct all applicable taxes and other applicable sums from your gross earnings. The Company shall review your compensation, including eligibility towards discretionary pay increases and discretionary bonuses, during your performance review assessment that will be conducted at least annually.

2.2 Incentive Compensation. In addition to your Base Salary, you may eligible for bonus, under the Company's Growth Incentive Program for an amount to be determined at the sole discretion of the Principals, with no minimum. The exact amount of your bonus will be based upon your satisfaction of objective factors and performance criteria established by the Principals, in its sole discretion, which may include: (1) financial performance of the Company; (2) you maintaining an active employment with the Company and (3) other objectives established specifically for you.

The Growth Incentive Program is designed to offer monetary compensation for new business and/or clients referred to the Company by its employees and is a percentage based on the Company's fees billed to the client, and is contingent upon receipt of payment from client for services rendered. Under the Growth Incentive Program:

- A.** If you refer new business or client to the Company, but NOT have active participation in the engagement, you are eligible for a one-time payment of 10% on the Net revenue from the new business, in Year 1, to be paid annually.
- B.** If in any new business engagement jointly captured by you and the Company, where in you have active participation in the engagement and lead in your capacity as Application Engineer, you are eligible for cash bonus of Base plus Bonus, not to exceed 70% of the total gross revenue, paid quarterly.
- C.** If you refer new business or client to the Company, and have active participation in the engagement and lead in your capacity as Application Engineer, you are eligible for cash bonus of Base plus Bonus, not to exceed 75% of the total gross revenue, paid quarterly.
- D.** For an employee referred by you, and upon his/her successful onboarding and completion of 90 days of employment with the Company, you will be eligible for a onetime cash bonus of up to \$1000.

If the project/engagement with Client ends, or otherwise Client withdraws and/or leaves the Company, no further Referral Fees will be payable. Fees due for the quarter will be pro-rated.

2.3 Benefits. Where applicable, you may be eligible to participate in certain fringe benefits offered by the Company including but not limited to health insurance coverage. Such benefits may vary from time to time and are offered at the Company's sole option.

Section 3. Restrictive Covenants

3.1 Consideration. As consideration for the restrictive covenants set forth in this Section 3, the Company hereby expressly promises to entrust to you Confidential Information (as this term is later defined), trade secrets, customer goodwill and/or other such sensitive information as is necessary to perform services for the Company and the Company's client and/or customers, as more fully described in Section 3.2 below and as subject to that provision.

3.2 Non-Disclosure of Confidential Information. The Company has expended substantial time and cost in developing and maintaining its business operations. During your employment with the Company, you will be exposed to, acquire knowledge regarding and/or assist in the development of products, quotations, specifications, trade secrets, systems, procedures, personnel pay details or other confidential or proprietary information of the Company and its customers:

A. Company Information. You agree at all times during your employment with the Company and thereafter, to hold in the strictest confidence, and not to use, except for the benefit of the Company, or to disclose to any person, firm or corporation without written authorization of the Company, any the Company Confidential Information. You understand that "Confidential Information" means any non-public information that relates to the actual or anticipated business, research or development of the Company, or to the Company's technical data, trade secrets or know-how, including, but not limited to, research, product plans or other information regarding the Company's products or services and markets thereof, customer lists and customers including, but not limited to, customers of the Company on which you called or with which you may become acquainted during the term of your employment), system, developments, inventions, processes, formulas, technology, designs, drawings, engineering, hardware configuration information, marketing, finances and other business information. Confidential Information does not include any of the foregoing items to the extent the same have become publicly known and made generally available through no wrongful act of mine or of others. You understand that your unauthorized use or disclosure of the Company Confidential Information during your employment will lead to disciplinary action, up to and including immediate termination and legal action by the Company.

B. Former Employer Information. You agree that during your employment with the Company, you will not improperly use, disclose, or induce the Company to use any proprietary information or trade secrets of any former or concurrent employer or other person or entity. You further agree that you will not bring onto the premises of the Company or transfer onto the Company's technology systems any unpublished document, proprietary information or trade secrets belonging to any such employer, person or entity unless consented to in writing by both the Company and such employer, person or entity.

C. Third Party Information. You recognize that the Company may have received and in the future may receive from third parties associated with the Company, e.g., the Company's customers, suppliers, licensors, licensees, partners, or collaborators ("Associated Third Parties") their confidential or proprietary information ("Associated Third Party Confidential Information"). By way of example, Associated Third Party Confidential Information may include the habits or practices of Associated Third Parties, the technology of Associated Third Parties, requirements of Associated Third Parties, and information related to the business conducted between the Company and such Associated Third Parties. You agree at all times during your employment with the Company and thereafter, to hold in the strictest confidence, and not to use or to disclose to any person, firm or corporation any Associated Third Party Confidential Information, except as necessary in carrying out your work for the Company consistent with the Company's agreement with such Associated Third Parties. You understand that your unauthorized use or disclosure of Associated Third Party Confidential Information during your employment will lead to disciplinary action, up to and including immediate termination and legal action by the Company.

D. Ownership. You agree that the Company is and shall remain the exclusive owner of all the Company Confidential Information and all patent, copyright, trade secret, trademark and other intellectual property rights therein. No license or conveyance of any rights to any Confidential Information of the Company is granted or implied under this Agreement. All information and/or data that may be disclosed by the Company is disclosed without any representations, warranties, assurances, guarantees or inducements, express or implied, including, without limitation, any representations, warranties, assurances, guarantees or inducements, express or implied, with respect to the (a) infringement or non-infringement of any patent or other proprietary right owned or controlled by any third party, and/or (b) content or accuracy of such information and/or data. the Company shall not be responsible for any expenses, losses or actions incurred or undertaken by you as a result of the receipt and use by a receiving party of such Confidential Information.

3.3 Non-Competition. You hereby acknowledge and agree, for so long as Employee shall remain employed by the Company and for a period of eighteen (18) months after termination of employment with the Company for any reason, not to:

A. Engage, directly or indirectly, in (as an employee, principal, shareholder, partner, consultant, independent contractor or any other capacity) any enterprise conducting business activities that are the same or similar to those of the Company, or the Company's customer or client for which you are performing services, within the surrounding metropolitan area.

B. Become employed by any customer or third party with whom you have had the opportunity to work as a result of your employment with the Company without the express written consent of the Company.

3.4 Non-Solicitation. During the course of your employment and for a period of Eighteen (18) months following termination of your employment with the Company for any reason whatsoever, you agree not to directly or indirectly solicit business, nor place, market, accept, aid, counsel or consult with any customers or clients of the Company for which you performed services as a the Company employee or were introduced to as part of your employment at the Company. You also agree not to induce, or attempt to induce, any past or current customer of the Company to cease doing business in whole or in part with or through the Company or (ii) to solicit, induce or encourage any other employee(s) or contractor(s) of the Company to terminate his or her relationship with the Company.

3.5 Publications, Media and Internet. During your employment with the Company, you agree not to publish, cause to be published or participate in any publication, or contribute to any article or review of any newspaper, magazine or other media format, whether for remuneration or otherwise, on a subject in any way related to or concerning the Company's business, services, products, strategies or policies without the prior written consent of the Company. Furthermore, you agree not to post any comments about the Company or any of its customers or clients, nor technical details of the company you are working with, including but not limited to, (1) the name of the customer or client, (2) the name of any employee, (3) the name of the consultant, etc., on any internet forums and/or any other social media outlets for one (1) year after termination of your employment with the Company without the written permission of the Company.

3.6 Participation in Open Source Community. Any participation in the Open Source Software community during the course of your duties for the Company will be limited to education about Open Source software, updates, fixes, enhancements, modifications, terms and/or conditions of use, etc. and will not include contribution of material, code, information, objects and/or software to those communities. You understand and agree that any Open Source software products within the Company environment must be approved before being introduced into, or used within, the

Company environment as specified by the Open Source Approval process (“Process”). This Process will govern the approval, evaluation, downloading, updating and use rules and restrictions related to open source software and licenses, including any exceptions to the Company policies related to Open Source. You agree to abide by the the Company policies surrounding Open Source, including those which prohibit the incorporation of Open Source code in software products (including, without limitation, libraries) if the Open Source code is subject to a license that requires any “modifications” be made freely available and which do not permit use of Open Source code within the Company software products, including those purchased from third party vendors, that are licensed under the GNU General Public License (“GPL”) in any manner that could cause, or could be interpreted or asserted to cause, the software product or any modifications thereto to become subject to the terms of the GPL. You agree that any exceptions to this must be expressly approved by an Officer of the Company, and such exception must follow the procedure outlined in the Process. You agree that you will clear any participation in the Open Source software community with your manager prior to participating and that the Company does not sponsor your participation in the Open Source Software community outside of the limited circumstances necessary to perform your regular duties as discussed above. Further, you agree that as an employee of the Company, you will refrain from contributing any code, information, objects and/or software to the Open Source Software community that in any way relates to the Company business or its operations. Any participation in the Open Source Software community outside of the scope of your duties will be unrelated to your scope of responsibility for the Company and unrelated to the industries in which the Company operates. In addition, you agree that all of your participation in the Open Source software community, should you choose to participate, will be done with non-the Company equipment outside of working hours and will not include any discussion of any the Company owned proprietary materials, procedures or other intellectual property which you come into contact with during the course of your employment. Your participation will be limited as described above so that it will not in any way jeopardize the proprietary rights of the Company. Further, any participation or contribution you make to the environment will not include any of the Company’s proprietary or patent protected software applications. This includes reformatting or reconfiguring the Company proprietary applications or code for use in other related or unrelated industries, as well as software applications or code purchased from a the Company partner or third party vendor. You agree to consult EHI manager and an IT Officer before continuing your participation if you are unsure of whether or not it falls within this area. You understand and ensure that your participation will in no way compromise the Company’s intellectual property rights.

3.7 Remedies. Any violation of the provisions set forth above in Sections 3.1 through 3.4, collectively referred to as the Restrictive Covenants, would result in irreparable injury to the Company entitling the Company to both temporary and permanent injunctions and, at its sole option, liquidated damages in an amount equal to Twenty-Five Thousand and 00/100 Dollars (\$25,000.00), plus the Company's costs of enforcing this Agreement including any court costs and attorney’s fees that the Company is entitled to by law. Nothing in this paragraph shall be construed as prohibiting the Company from pursuing any other legal and equitable remedies, including the recovery of actual and consequential damages.

Section 4. EMVIA Property

4.1 Intellectual Property. Any work product developed by you in the course of your employment with the Company shall be the sole an exclusive property of the Company and/or its customers, and you hereby expressly agree to assign any and all rights in such work product to the Company or any of its customers. Upon the Company's request, you

agree to execute, acknowledge, and deliver to the Company all documents and do all things necessary, at the Company's expense, to enable the Company to obtain and secure all rights in such work product.

4.2 Issued Property. You shall be responsible for any property of the Company issued to you to aid in the performance of your duties. In the event any such property is lost or stolen, or is missing for any reason, you shall be required to provide the Company, at its sole option, with either (i) replacement of like kind property, or (ii) reimbursement for the full value of the property.

4.3 Discoveries, Inventions and the Like. All works and property, including, but not limited to, all intellectual properties, ideas, inventions, data, discoveries, concepts, designs, technology, computer systems or programs, works, techniques, programs or any components or improvements, innovations, and writings (whether or not protectable by a patent, trade secret, know how, trademark, trade dress or a copyright), which are conceived of, made, reduced to practice, created, written, designed or developed, authored or made by you, alone or in combination with others, during the regular course and scope of your employment, or which relate to the business operations of the Company, ("Creations") shall be the sole and exclusive property of the Company.

A. All Creations referenced in section 4.3 shall be deemed "works made for hire" to the extent permitted by applicable law. To the extent that Creations described in this paragraph are not deemed "works made for hire" under applicable law and assigned by operation of law, you hereby specifically assign to the Company any and all intellectual property rights in the Creations. You also agree that in the course of developing such Creations that you are not knowingly infringing upon the rights of any other person or entity, including any proprietary rights related to patents, trademarks, trade secrets, know how, trade dress or copyrights, and that you have the right and authorization to develop, create or reproduce the Creations and any of the content within the Creations. Notwithstanding the foregoing, any such works or property which are completed during non-working hours and which are either unrelated to the business of the Company, or which consist of publicly known programming design practices and code or other programming content not written and developed for use by the Company, shall not be the sole and exclusive property of the Company.

Section 5. Termination

5.1 At-Will Employment. YOU UNDERSTAND AND ACKNOWLEDGE THAT YOUR EMPLOYMENT WITH EMVIA IS FOR AN UNSPECIFIED DURATION AND CONSTITUTES "AT-WILL" EMPLOYMENT. YOU ALSO UNDERSTAND THAT ANY REPRESENTATION TO THE CONTRARY IS UNAUTHORIZED AND NOT VALID. ACCORDINGLY, YOU ACKNOWLEDGE THAT YOUR EMPLOYMENT RELATIONSHIP MAY BE TERMINATED AT ANY TIME, WITH OR WITHOUT GOOD CAUSE OR FOR ANY OR NO CAUSE, AT YOUR OPTION OR AT THE OPTION OF EMVIA.

5.2 Job Abandonment. In the event you are absent without leave (AWOL) for a period of seven consecutive work days and fails to communicate with the Company, in writing (or via email), then such an absence shall be considered a resignation and/or maybe terminated for cause, unless the Company's management accepts an explanation.

5.3 Expense Reimbursement. In the event you voluntarily terminate your employment with the Company or the Company terminates your employment for cause (including but not limited to misconduct, insubordination, substandard performance, excessive absence, breach of this Agreement, etc.), you agree to reimburse the Company for any and all expenses incurred by the Company in relocating and training you as well as any and all applicable expenses associated with initiating your sponsorship of immigration benefits and as permitted by law.

5.4 Repayment of Loans. Any and all sums loaned to you by the Company shall become due immediately upon your termination of employment with the Company for any reason. You expressly authorize the Company to deduct or withhold such amounts from any compensation or other amounts otherwise payable to you. In the event of your failure to repay the sums owed by you to the Company, the Company's Management reserves the right to pursue all legal remedies including but not limited to initiating collection procedures, through third party collection agencies.

5.5 Return of EMVIA Property. You agree to return all the Company property and information prior to leaving the employment of the Company. The Company property and information includes, but is not limited to, any and all documents, letters, lists, schedules, memoranda, specifications, manuals, handbooks, logs, computer or other data, in electronic form or otherwise, or any other the Company information provided to or obtained by you during your employment with the Company, regardless of whether such information constitutes trade secrets or proprietary information. You agree that you shall retain no copies nor make any further use of, either directly or indirectly, any the Company proprietary information.

5.6 Remedies. If upon termination you have a dispute as to the amount of compensation, loans, or payments due, then you as the employee are hereby bound to accept the remedy of binding arbitration for any dispute. The parties (employee and employer) shall mutually decide upon the arbitrator to be used. If such mutual decision cannot be reached then the Company shall choose the arbitrator and the site of arbitration. The costs and fees of the arbitrator shall be equally shared by both parties (Employee and the Company).

Section 6. Indemnity

6.1 Indemnification. YOU ACKNOWLEDGE AND AGREE TO PROTECT, DEFEND, INDEMNIFY AND HOLD EMVIA, ITS AGENTS, EMPLOYEES, SERVANTS, OFFICERS, DIRECTORS, SUBSIDIARIES AND AFFILIATES, HARMLESS FROM AND AGAINST ANY AND ALL CLAIMS, DEMANDS, ACTIONS, LIABILITIES, LIENS, LOSSES, DAMAGES, AND EXPENSES, OF EVERY KIND AND CHARACTER WHATSOEVER, INCLUDING WITHOUT LIMITATION BY ENUMERATION THE AMOUNT OF ANY JUDGMENT, PENALTY, INTEREST, COURT COSTS AND LEGAL FEES INCURRED IN CONNECTION WITH THE SAME, OR THE DEFENSE THEREOF, FOR IN CONNECTION WITH LOSS OF LIFE OR PERSONAL INJURY (INCLUDING EMPLOYEES OF YOU OR YOUR EMPLOYER OR OF EMVIA OR ITS CUSTOMERS/CLIENTS), DAMAGE TO PROPERTY (INCLUDING PROPERTY OF YOU OR YOUR EMPLOYER OR OF EMVIA OR ITS CUSTOMERS/CLIENTS), AND WITHOUT LIMITATION BY ENUMERATION ALL OTHER CLAIMS OR DEMANDS OF EVERY CHARACTER WHATSOEVER DIRECTLY

OR INDIRECTLY ARISING OUT OF, OR INCIDENT TO, OR IN CONNECTION WITH, OR RESULTING FROM YOUR ACTIVITIES, OR IN CONNECTION WITH THE WORK TO BE PERFORMED, SERVICES TO BE RENDERED, OR MATERIALS TO BE FURNISHED, UNDER THIS AGREEMENT, EXCEPTING ONLY CLAIMS ARISING OUT OF ACCIDENTS RESULTING FROM THE SOLE NEGLIGENCE OF EMVIA.

Section 7. Miscellaneous

7.1 Basis for Employment. Your employment is substantially based on the information provided by you. If it is found at any stage that the information provided by you is incorrect or the some information is suppressed or misrepresented, you shall be deemed to have breached this Agreement and your employment shall automatically terminate.

7.2 Severability. If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions of this Agreement will remain in full force.

7.3 Entire Agreement. This Agreement constitutes the entire Agreement between the parties and supersedes any prior written or oral understandings, agreements, or conditions. No change, modification, amendment, or addition will be valid unless it is in writing and signed by the party against whom enforcement of any change, modification, amendment, or addition is assigned.

7.4 Breach by Employee. If any action arises to enforce the terms and conditions set forth in this Agreement and the Company is awarded judgment, you agree to reimburse the Company for its costs, attorney(s) fees and any other reasonable expenses incurred as a result of such enforcement, including interest, permitted under Texas law.

7.4 Waiver. The waiver of any default or breach of this Agreement by the Company shall not constitute a waiver of any other or subsequent default or breach.

7.5 Governing Law. This Agreement shall be construed and enforced in accordance with the laws of the State of Texas and you agree to submit to the jurisdiction of Texas and its courts for a legal resolution of any legal remedy sought or provided for under this Agreement.

7.6 Paragraph Headings. The titles to the paragraphs of this Agreement are solely for the convenience of the parties and shall not be used to explain, modify, simplify or aid in the interpretation of the provisions of this Agreement.

EMVIA, LLC hopes you agree that this is an exceptional opportunity for you. EMVIA, LLC is pleased that you are joining us, and we look forward to a mutual beneficial relationship.

Sincerely,

EMVIA, LLC

Date:

Shravani Reddy
Human Resource Manager

Agreed to and accepted with the express intent to be bound on this day the_____.

Signature: _____

Name: _____